

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod
-oOo-

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG
PANLUNGSOD, CITY OF DAVAO, HELD ON FRIDAY, FEBRUARY 22, 1985.

PRESENT:

Vice Mayor Cornelio P. Maskarifo, Presiding Officer,
Councilors Valentino C. Banson, Bienvenido O. Amora,
Dominator B. Zuño, Jr., Pantaleon V. Pelayo, Jr.,
Tomas Monteverde, Jr., Alfredo H. Vergara, Exuperio
M. Porras, Cipriano Villafuerte, Jr., Antonio S.
Castillo, Diosdado A. Mahipus and Lydia S. Bangoy.

ABSENT:

Councilors Alexis C. Almondras (O.B. Manila), Julieta C. Feliciane,
Domingo R. Vidanes, Jose A. Jison (under suspension)
and Robert Alan Limao.

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RESOLUTION NO. 60

On Motion of Councilor Tomas Monteverde, Jr., duly seconded by
Councilor Bienvenido O. Amora, co-sponsored by Councilors Valentino C.
Banson and Diosdado A. Mahipus, the following Resolution was adopted
by the Sangguniang Panlungsod, City of Davao, in session assembled:

WHEREAS, the people have a right to assemble peacefully and air
their grievances against the government or any person or entity and there
is a need to establish a site for the purpose to be called "Freedom Park";

WHEREAS, the "Clifford Park" fronting the present site of the Post
Office and the Boy Scouts of the Philippines Building, Davao City,
bounded by C. M. Recto Avenue, R. Magaysay Avenue and P. Reyes St.,
Davao City, is hereby designated as "Freedom Park";

WHEREAS, the "Freedom Park" may be used by the people without
securing a permit from the City Government subject to certain conditions.

NOW, THEREFORE, BE IT RESOLVED, AS IT IS HEREBY RESOLVED, To approve
an Ordinance, entitled:

ORDINANCE NO. 23

AN ORDINANCE ESTABLISHING THE "FREEDOM PARK", A SITE FOR THE PEOPLE OF
DAVAO CITY TO ASSEMBLE PEACEFULLY, WHERE THEY CAN AIR THEIR GRIEVANCES
AGAINST THE GOVERNMENT OR ANY PERSON OR ENTITY WITHOUT SECURING A PERMIT
FROM THE CITY GOVERNMENT SUBJECT TO CERTAIN CONDITIONS.

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

SEC. 1. - There is hereby established a "Freedom Park" in Davao
City where the people can peacefully assemble to air their grievances
against the government or any person or entity;

SEC. 2. - The site of the "Freedom Park" shall be the area fronting

Resolution No. 60, Ordinance No. 23,
series of 1985, Cont'd.:

the Davao City Post Office and the Boy Scouts of the Philippines Building, bounded by C. M. Recto Avenue, R. Magsaysay Avenue and Ponciano Reyes St., Davao City, presently called the "Clifford Park";

SEC. 3.- Any person, group, organization, or party may use the "Freedom Park" without securing a permit from the City Government subject to the following conditions:

- a) That they shall inform the Office of the City Mayor of the name of the person, the organization, group or party and its officers including the time and date of the use;
- b) That they shall police their own rank and file and maintain peace and order within the site;
- c) That they shall not obstruct nor block traffic along C. M. Recto, R. Magsaysay Avenue and P. Reyes St., bounding the area;
- d) That the City of Davao nor any of its officers or agents shall not be liable nor responsible for any criminal act or acts that may be committed by those who participate in the use of the "Freedom Park".

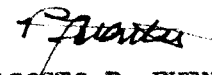
SEC. 4. - This Ordinance shall take effect upon approval.

CARRIED, By a majority of ten (10) affirmative votes. Councilor Exuperio M. Porras - negative.

APPROVED:


CORNELIO P. MASKARINO
Vice Mayor
Presiding Officer

ATTESTED:


AGOSTO P. FUENTES
Secretary, Sangguniang P

APPROVED: _____, 1985.

ATTESTED:

ELIAS B. LOPEZ
City Mayor

CESAR R. NUÑEZ
City Secretary